

WAIVER AND/OR RELEASE OF ACTIONS, DAMAGES, CLAIMS AND/OR LIABILITY

THIS WAIVER and/or Release of Actions, Damages, Claims and/or Liability is made, entered into and executed between PARTICIPANT and David M. Yamulla Jr., Claudette Angelo, Black Creek Adventures LLC. and Yamulla Enterprises Inc., Yamulla Construction Corp., Richard E. Angelo Family Limited Partnership, Hazleton Water Authority, and SYZE Inc. with offices and principal place of business located at 980 N. Laurel Street, city of Hazleton, County of Luzerne and Commonwealth of Pennsylvania.

WITNESSETH

KNOW ALL MEN BY THESE PRESENTS, and with intent to be legally bound, the parties mutually agree as follows:

That PARTICIPANT is an adult individual and is legally competent to execute this Waiver and/or Release of Actions, Damages, Claims and/or Liability and expressly agrees to waive and/or release, discharge and/or waive any and all actions, damages, claims and/or liability that he/she may have against David M. Yamulla Jr., Claudette Angelo, Black Creek Adventures LLC. And Yamulla Enterprises Inc., Yamulla Construction Corp., Richard E. Angelo Family Limited Partnership, Hazleton Water Authority, and SYZE Inc., his/her/their workmen, agents, servants, and/or employees, his/her/their heirs, successors and/or assigns, as a result of any and all use and/or association with the real property including, but not limited to hunting, trapping, use and/or recreation of whatever kind and/or whatever use on the premises.

That PARTICIPANT, his/her heirs, successors, representatives, transferees, assigns and each and every of them, does hereby release, remise, waive, acquit, quit claim and forever discharge, hold harmless and make no demand whatsoever upon David M. Yamulla Jr., Claudette Angelo, Black Creek Adventures LLC. and Yamulla Enterprises Inc., Yamulla Construction Corp., Richard E. Angelo Family Limited Partnership, Hazleton Water Authority, and SYZE Inc. his/her/their, workmen, agents, servants and/or employees, his/her/their heirs, successors and/or assigns and each and every of them, of and from all, and any and all manners and actions, suits, debts, dues, duties, sums of money, accounts reckonings, bonds, bills, specialties, covenants, contracts, controversies, agreements, promises, variances, damages, (both incidental and consequential), judgment, extents, executions, claims, liability and demands whatsoever, both in law and equity and otherwise, of which and each and every of them ever had, now have or shall have and may have against David M. Yamulla Jr., Claudette Angelo, Black Creek Adventures LLC. and Yamulla Enterprises Inc., Yamulla Construction Corp., Richard E. Angelo Family Limited Partnership, Hazleton City Authority, and SYZE Inc., his/her/their workmen, agents, servants and/or employees, his/her/their heirs, successors and/or assigns, arising and/or occurring from any and all aspects, injuries, death, damages and/or results of all uses and associations with the real property, including but not limited to hunting, trapping, use and/or recreation, of whatever kind and/or whatever use.

That if married, PARTICIPANT has the consent of his/her spouse to execute this Waiver and/or Release of Actions, Damages, Claim and/or Liability both individually and on behalf of him/her.

I, the undersigned, do hereby acknowledge that as a PARTICIPANT, I freely and voluntarily engage in a hazardous activity for my own recreation, enjoyment and pleasure. I recognize that as part of this activity, other participants and I will traverse difficult and dangerous terrain and obstacles, encounter wild animals, poisonous animals, poisonous plants, unpatrolled and dangerous water, and dangerous weather conditions including, lighting, wind, and precipitation and transport, use and discharge various firearms and other weapons and I freely and voluntarily assume any and all risk of injury and death in any way associated with these activities and/or use of the premises.

I, understand that the premises may not be equipped with cell phone coverage, emergency phones services, defibrillators, personnel or attendant shelters.

I, certify that I am 18 (eighteen) years of age or older. I further state that by signing this document I have fully read and understand its contents, AND I AM VOLUNTARILY WAIVING RIGHTS that may be granted to me by Federal, State, and local statutes, as well as common law of the nations.

IN WITNESS WHEREOF, and intending to be legally bound hereby, I have set my hand and seal the day, month and year written below.

HUNTERS UNDER THE AGE OF 18

In the case of a PARTICIPANT under the age of 18 his/her age must be written after his/her name – Example – John Doe (16 years old) and the responsible parent or guardian must sign his/her name above the pre-18 year old and, by doing so, agrees that all terms and conditions of this Waiver/Release apply for both PARTICIPANT and signatories.

PARENT OR GUARDIANS SIGNATURE (if applicable)

DATE

PARTICIPANTS SIGNATURE

WITNESSES SIGNATURE

PARTICIPANTS PRINTED NAME (and age if under 18)

WITNESSES PRINTED NAME

HUNTING CLUB NAME (if applicable)